

REPUBLIC OF KENYA



PARLIAMENT OF KENYA

The Twelfth Parliament

The Senate .Fifth Session

PETITION BY THE RESIDENTS OF BUXTON ESTATE ON THE EVICTON AND DEMOLITION OF THE BUXTON ESTATE.

To, The Speaker of the Senate
Parliament Buildings ,
NAIROBI

1. The humble Petition of the Residents of Buxton Estate, Mvita Constituency of Mombasa County who state as follows;
2. That your Petitioners were Residents of Buxton Estate owned by the County Government of Mombasa until on Friday 5th March 2021 ,when they were forcibly Evicted from the said Houses by the County Government Inspectorate personnel.
3. That sometimes in 2016 or thereabouts, the County Government of Mombasa came up with a Vision 2035 Project which sought to re-develop all the County Housing Estates and replace them with modern dwellings.
4. That Buxton Estate was one of the Estates , and the Residents went to Court to challenge the Project on the grounds among others that there was no Public Participation done before Approval of the Project and that the

proposed Resettlement Plan did not comply with the Law and International Conventions of Eviction of People.

5. That the Land and Environment Court ordered the Developer then to provide a proper Resettlement program that would comply with the Laws and International Conventions .
6. That the Project did not take off and the Developer did not implement the Court Ruling.
7. That sometimes in 2020, a new Developer came upon an Award of the fresh Tender to re-develop the Estate. The Developer then did a Public Participation forum but the issues raised therein by the Residents were not properly addressed.
8. That the Residents again went to Court and sought Injunctive Orders to stop the project until our issues are addressed.
9. That on 4th March 2021 the Land and Environment Court dismissed our Injunction application . On 5th March 2021 the County Inspectorate moved in very early in the morning and started the demolition, initially of the Kiosks and other structures. Later on they proceeded to remove the doors and windows from the Houses in a brazen attempt to evict us from the Houses.
10. That some of the Residents had not collected their compensation cheques and neither had they signed the Resettlement agreement to enable a smooth handover of possession.
11. That our rights as Citizens were grossly violated as the Evictions were one without any Notice to us and without any regard to human dignity and property.

12. That we seek the intervention of the Senate as our Rights under the Constitution, the Relevant Laws and the United Nations Conventions have been grossly violated.
13. That apart from the Human Rights issues, there is also the whole issue of how the Bidding for the Tender was conducted and there might have been further violations of the Public Procurement and Disposal Act.
14. That the Contract between the County Government of Mombasa and the Developer has been shrouded in mystery and the Residents efforts to see the Contract and seek information from the County Government of Mombasa have been fruitless.
15. That to date, we as the Residents do not know what the County Government of Mombasa is getting from the deal in return for the Land and the developments which are now being demolished.
16. That in the circumstances we pray that the Senate do investigate these issues with a view to address our grievances.

Dated at Mombasa this 10th day of March 2021

1. The first part of the report is a general introduction to the project. It describes the purpose of the study and the objectives that were set at the beginning. It also mentions the scope of the work and the limitations that were encountered during the process.

2. The second part of the report is a detailed description of the methodology that was used. It explains the different steps that were taken to collect and analyze the data. It also mentions the tools and software that were used to assist in the process.

3. The third part of the report is a presentation of the results that were obtained. It shows the different data sets that were collected and how they were analyzed. It also mentions the conclusions that were drawn from the results.

4. The fourth part of the report is a discussion of the results and their implications. It explains how the results relate to the objectives that were set at the beginning and how they can be used to inform future research and practice.

5. The fifth part of the report is a conclusion and a list of references. It summarizes the main findings of the study and provides a list of the sources that were used to support the work.

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1. The first part of the document discusses the importance of maintaining accurate records of all transactions and activities. It emphasizes the need for transparency and accountability in financial reporting.

2. The second part of the document outlines the various methods and techniques used to collect and analyze data. It includes a detailed description of the experimental procedures and the statistical analysis performed.

3. The third part of the document presents the results of the study. It includes a series of tables and graphs that illustrate the findings of the research. The data shows a clear trend of increasing activity over time.

4. The fourth part of the document discusses the implications of the findings. It suggests that the results of the study have significant implications for the field of research and may lead to further developments in the future.

5. The fifth part of the document concludes the study. It summarizes the main findings and provides a final statement on the importance of the research.

RECEIVED
14 DEC 2022

REPUBLIC OF KENYA

THE SENATE
RECEIVED

14 DEC 2022

DIRECTOR LEGISLATIVE AND
PROCEDURAL SERVICES



Ms. Macharia
Please process
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14/12/22

PARLIAMENT OF KENYA

The Thirteenth Parliament The Senate First Session

To:

The Clerk of the Senate
P. O. Box 41842-00100
Parliament Buildings
NAIROBI

Ms. Macharia.
Kindly review and
process.
S. Chacha
16/12/2022.

We the Undersigned,

Citizens of the Republic of Kenya and residents of Mombasa County

Draw the attention of the senate to the following:

The humble Petition of the former residents of Buxton Estate, Mvita Sub-County in Mombasa County who state as follows:

1. **THAT** we are former Buxton tenants.
2. **THAT** the County Government of Mombasa is currently implementing the Urban Renewal and Regeneration Programme through the construction of modern houses in the old estates built on public land.

3. **THAT** the County government commenced implementation of the housing project in the Buxton estate.
4. **THAT** we exercised our right as envisaged under Article 37 and 119 of the Constitution by petitioning the County Assembly of Mombasa on 3rd September 2020 for their intervention as the project does not target the intended beneficiaries.
5. **THAT** our efforts to have the County Assembly of Mombasa to intervene were futile.
6. **THAT** we therefore petitioned the Parliament on 10th day of March 2021 to have our petition heard and determined to its logical conclusion (please find enclosed copy of the petition for details).
7. **THAT** the Senate Committee on Roads and Transportation was tasked to investigate the Buxton Project with a view to find out whether the Buxton project aims at providing affordable housing to the low-income earners and whether the project guarantees home ownership by former Buxton tenants.
8. **THAT** the Senate Committee on Roads and Transportation began investigations on the Buxton housing project.
9. **THAT** the Senate Committee on Roads and Transportation came to Mombasa on 19th August 2021 to hear the petition by Buxton tenants.
10. **THAT** during the hearing on 19th August 2021, the petitioners presented their petition and the Senate Committee observed that the questions raised by the Buxton petitioners were not immaterial and resolved to suspend the project until the governor appeared in person to produce documents and answer all the questions raised by the petitioners.
11. **THAT** after the senate committee insisted on in person hearing, the governor finally appeared before the committee on 10th September 2021.
12. **THAT** the hearing of the evidence by the senate committee commenced on 10th September 2021. However, the investigations were not concluded.
13. **THAT** during the hearing on 10th September 2021, the following directives were given by the senate committee:

- a) *That the county government of Mombasa should convene a meeting with former Buxton home owners and have an engagement with them to make them understand precisely what he said to the Committee about the affordable housing concept in Buxton and answer ALL the questions that have been raised by the petitioners.*
- b) *That the county government of Mombasa should consider expanding the retention of the catch of the number of houses the county government will have available for former Buxton tenants.*
- c) *That the county government of Mombasa should consider what methods it is going to employ to intervene on behalf of former tenants in order to help them benefit from the low-cost housing concept as has been programmed and muted by the National Government including the benefits of long-term repayment periods.*

14. **THAT** we wish to state that the county government of Mombasa has to date not acted on the above directives.

15. **THAT** we wish to therefore plea to the new Senate Committee to have the matter finalized expeditiously as the project is almost on its completion stage with the first phase scheduled to be launched in early February 2023 where the Buxton tenants were promised right of first refusal.

16. **THAT** most Buxton tenants cannot purchase the new modern units as they are people of low social status.

17. THAT most Buxton tenants cannot access mortgages as they are people who are not in salaried employment.

18. THAT undoubtedly, as conceived in Article 96 of the Constitution, the Senate plays a pivotal role in defending devolution and public interests.

19. THAT we therefore hope that you will expeditiously finalize the investigations and give the petitioners the final report.



John Samuel Tsuma

FOR: CHAIRMAN BUXTON TENANTS ASSOCIATION

SIGNED AND DATED AT MOMBASA THIS^{14th} OF DECEMBER 2022

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JOHN TSUMA

